

24STCV07942 24STCV07942

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV07942 Hearing Date: August 3, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

CITIBANK

N.A.,

Plaintiff,

vs.

JAMIE

INZUNZA,

Defendant.

Case No.:

24STCV07942

Hearing

Date:

August 3, 2026

ORDER
GRANTING MOTION TO VACATE DISMISSAL
AND ENTER JUDGMENT PURSUANT TO STIPULATED SETTLEMENT

I. BACKGROUND

Plaintiff

Citibank N.A. ("Citibank") sued Defendant Hamie Inzunza's ("Inzunza") for common counts to collect Inzunza's overdue credit card payments, totaling \$36,461.86.

On

April 28, 2025, Citibank filed a Stipulation and Order for Settlement Agreement, which the Court granted. Pursuant to stipulation, Inzunza was dismissed and the Court retained jurisdiction pursuant to Code of Civ. Proc. section 664.6.

On

November 4, 2025, Citibank filed the instant motion to vacate dismissal and enter judgment. No party filed an opposition.

II. LEGAL
STANDARD

Pursuant to Code of Civil Procedure section 664.6, subdivision (a)[1], "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." A writing is signed by a party if it is signed by a party, an attorney who represents the party, or if the party is an insurer, an agent who is authorized in writing by the insurer to sign on the insurer's behalf. (§ 664.6, subd. (b).)

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.

(2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98.)

III. DISCUSSION

Citibank

requests the Court vacate dismissal and enter judgment of \$35,516.47, consisting of \$34,462.86 in unpaid principal and \$1,053.61 in costs, pursuant to the Court's authority to enter judgment under section 664.6. Under section 664.6, subd. (a), the Court may vacate dismissal and enter judgment on a pursuant to the terms of a stipulated settlement.

Here, the settlement stipulation ("the stipulation") provides in pertinent as follows:

"Jaime Inzunza

("Defendant") stipulates to the entry of judgment in favor of CITIBANK, N.A. ("Plaintiff") in the principal sum of \$36,461.86 plus court costs pursuant to a memorandum of costs (which will be limited to Plaintiff's fee for filing the complaint; Plaintiff's fee for service of process; fees (including any reporter fee that the court may require at the time a motion or application is filed) for any motion, application, and/or order that has been granted, including the motion or application to enforce this Agreement and any order fee required to file the attached proposed order; and Defendant's first appearance fee if Plaintiff advances that fee in order to file this Agreement); less credit for payments made in good funds before the time of default.

Plaintiff and Defendant (together, the "Parties") agree that \$36,461.86 is the accurate liquidated amount owed by Defendant for the account number ending in 1098 (the "Account").

Notwithstanding Defendant's agreement to have judgment entered against him/her, Plaintiff will not request that judgment be entered so long as Defendant is not in default with the payment plan set forth herein.

Defendant agrees to pay to Plaintiff a one-time payment of \$499.67 on or before December 31, 2024; followed by a one-time payment of \$497.69 on or before January 20, 2025; followed by a minimum of \$499.50 on or before the 20th day of each and every month commencing in February, 2025, until the Defendant has paid the Judgment Amount. These consecutive monthly installments, totaling \$36,461.86. timely received, will constitute full satisfaction of the Judgment Amount. Time is of the essence with respect to all payments. If Defendant fails to make full and timely payment of any installment or if any payment is reversed, then the full remaining balance will be due, and Plaintiff shall be entitled to enter judgment for the Judgment Amount plus court costs... less credit for payments made in good funds before the time of default.

The Parties jointly request that this court retain jurisdiction under Code of Civil Procedure § 664.6. The Parties further request that this court vacate all future hearings and stay all further action on this case pending completion of the Parties' respective obligations under this Stipulation. If and only if local rules so require, the Parties, by their signatures below, authorize the court to dismiss this case without prejudice. To the extent that the court dismisses the case without prejudice and pursuant to Code of Civil Procedure § 664.6, the court shall retain jurisdiction. The Parties further agree that in the event of a default in payments and upon Plaintiff's motion served and filed in accordance with Code of Civil Procedure § 1005(b), the court shall reopen the case, vacate any dismissal, and enter judgment for the Judgment Amount plus any motion and/or order fee(s) required by the court, less credit for payments made."

(Mot.,
Request for Judicial Notice, Ex. B.)

The stipulation submitted by Citibank was signed by Inzunza and by Citibank's representative, Ruonan Wang. (Ibid.) The stipulation was approved by the Court, which retained jurisdiction to enforce settlement pursuant to section 664.6.

Citibank asserts Inzunza has not made a settlement payment since April 24, 2025. (Mot., DiPiero Decl. ¶ 5.) Inzunza has paid a total of \$1,999.00 pursuant to the stipulation, leaving an unpaid balance of \$34,462.86. (Id. at ¶ 7.) Following the failure to render payment, Citibank issued a 10-day written notice on Inzunza of failure to make payment and Citibank's intention

to request entry of judgment. (Id. at ¶ 6, Ex. A.)

The Court finds that the statutory requirements of section 664.6 have been met. Additionally, Inzunza did not oppose the motion. A failure to oppose a motion may be deemed consent to the granting of the motion. (Cal. Rules of Court rule 8.54(c).) The motion to enforce the settlement agreement is therefore granted.

Citibank seeks the unpaid principal and costs, both of which are specifically outlined as recoverable under the settlement agreement. (Mot., Request for Judicial Notice, Ex. B.) Citibank specifically requests costs of \$980.00 for filing and motion fees and \$73.61 for service of process fees. These costs are prima facie reasonable and outlined as recoverable within the settlement agreement. Therefore, the Court finds the requested judgment both reasonable and requested pursuant to stipulated terms.

IV. CONCLUSION

Plaintiff Citibank's motion to enforce the settlement agreement is GRANTED.

Judgment is entered against Inzunza in the total amount of \$35,516.47.

Moving Party is ordered to give notice.

DATED:

August 3, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If the

parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.